

(1999) 76 Cal.App.4th 970, 974.) Petitioners fail to suggest, let alone establish, that the documents sought “relate to the matter in which [Ms. Klussman] seeks relief . . .”

Second, because the documents sought by these requests are not relevant to allegations in the Surcharge Petition, in order to establish that the documents are relevant to Ms. Klussman’s credibility, Petitioners are required to make an evidentiary showing that she “hid or failed to disclose the existence of IRA accounts from her adult son(s).” (See (*Calcor Space Facility v. Super. Ct.* (1997) 53 Cal.App.4th 216, 223 [held: where good cause for production cannot be established by reference to the pleadings, the burden on the party seeking discovery is to “produce evidence from which the court may determine” that “the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence”].) Petitioners cite to no such evidence in their Separate Statement. (See Rule 3.1345.)

The evidence before the Court, although not in the Separate Statement, presented through the Declaration of Abby L. Bloetscher is conclusory and lacks foundation. Through a Supplemental Declaration, Ms. Bloetscher provides limited additional evidence and suggests the South Dakota protective order precludes her to provide more. She suggests that she should present the evidence in camera.

While the Court agrees that the credibility of a witness is always at issue at trial, the breadth of these requests would capture all communications between Ms. Klussman and her sons related to the IRA accounts – not just those which might support a challenge to Ms. Klussman’s credibility. Given the fact the IRA accounts are not Trust property, Max and Dakota’s right to privacy in their financial affairs and the lack of specificity in the Demands and evidence presented to the Court, the Court DENIES the motion as to these requests.

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Conservatorship of Brenda Cortes

21PR000132

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on August 08, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Cynthia Lu Pontynen

25PR000087

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Accountings are hereby waived so long as the conditions under Probate Code section 2628, subdivision (a) continue to be satisfied. The matter is set for a Review – Biennial hearing in two years, on August 08, 2026, at 8:30 a.m. in Dept. B.

The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In the Matter of Lonna Lee Garza Trust

26-52729

PETITION CONCERNING INTERNAL AFFAIRS OF TRUST AND FOR ORDER:
(1) APPROVING NINTH, TENTH, AND ELEVENTH TRUST ACCOUNTS AND REPORTS
OF TRUSTEE, AND (2) APPROVING TRUSTEE COMPENSATION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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In The Matter of The Joan I. Amir Revocable Trust

26PR000139

PETITION

APPEARANCE REQUIRED. The parties shall attend prepared to discuss whether any opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in informal settlement discussions or other alternative dispute resolution proceedings. Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are directed to meet and confer on the foregoing issues prior to the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Andre Nave-Hernandez v. SRGA Resort, LP et al

25CV002138

[1] PLAINTIFF ANDRE NAVE-HERNANDEZ'S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT SRGA RESORT, LP, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE AND SPECIAL INTERROGATORIES, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The matter is CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. A.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030 subdivision (a) and 2023.040, for an order compelling Defendant SRGA Resort, LP, to produce further responses to Plaintiff's Form Interrogatories, Employment, Set One., Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1, Request for Production, Set